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LINE 9

25-CIV-00564

ELAINE RYZAK FRASER VS. DWIGHT O WILLIAMS

ELAINE RYZAK FRASER
DWIGHT O WILLIAMS

ELAINE R. FRASER
PRO SE

MOTION TO SET ASIDE DEFAULT

TENTATIVE RULING:

The Motion to Set Aside Default (the “Motion”) brought by Defendant Dwight O. Williams is GRANTED.

Background

Per the Complaint, Defendant retained Plaintiff as his attorney in his dissolution matter in 2018. On about September 21, 2021, Defendant became delinquent in paying Plaintiff under the parties’ legal fee agreement, and thereafter kept promising Plaintiff to pay her from a personal injury settlement and from the sale of his house, but Plaintiff was never paid beyond a last payment of \$1,000 on January 4, 2024 (Complaint, p.5, ¶ 15) or May 1, 2024 (*id.*, p.6, box FR-2.b). Defendant has allegedly failed and refused to pay Plaintiff \$54,795.28.

Plaintiff requested and the Clerk entered the default of Defendant on December 2, 2025 (the “Default”). Plaintiff also sought a default judgment by the court, which the court denied without prejudice. (Judgment Denied without Prejudice, filed on March 5, 2026, p.2.)

As to the penultimate point, the court’s records show that Plaintiff filed proofs of service upon Defendant by substituted service upon his tenant at “236 Marvilla Cir [¶] Pacifica, CA 94044” and by mail at the same address (two Proofs of Service of Summons, filed on December 2, 2025, pp.1), which the court found questionable so that the served document was not filed.

Through his Motion to Set Aside Default (the “Motion”), Defendant now seeks an Order setting aside the default and any default judgment, and allowing him to file his proposed Answer.

The Motion Is Granted.

Inter alia, Defendant asserts that he was not validly served. (Code Civ. Proc., § 473, subd. (d).) In pertinent part, this statute provides that, “The court may, ... on motion of either party after notice to the other party, set aside any void judgment or order.”

According to Defendant and not disputed by Plaintiff, Defendant relocated from his residence in Pacifica, California, to Florida in 2020. (Williams Decl., ¶¶ 7, 9.) When the Summons and Complaint were served to his Pacifica address, it was occupied not by Defendant but by his tenants, whom he had not authorized to accept service of process on his behalf. (*Id.*, ¶ 10.) Defendant does not recall being personally served at his Florida residence. (*Id.*, ¶ 12.)

The Court’s records show that Plaintiff attempted service upon Defendant at an address in Florida (Non Service Report, filed on April 15, 2025), and then by substituted service upon his tenant at

“236 Marvilla Cir [¶] Pacifica, CA 94044” and by mail at the same address (Proof of Service of Summons, filed on June 10, 2025).

The non-service in Florida clearly is not constitute service. The last two declared forms of service are the same as those that the court later found questionable. Since Defendant’s tenant was not his authorized agent for service of process, the Court finds based upon Defendant’s declaration, that there was not proper service. The requirements of the statutes governing service of process are to be strictly followed especially in light of the strong public policy of California courts to dispose of cases on their merits. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. “As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].) Thus, the Default is void. The Motion is granted. (Code Civ. Proc., § 473, subd. (d).)

Defendant is to file his proposed answer within five court days after notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

25-UDL-00283 HSBC BANK USA, NATIONAL ASSOCIATION AS TRUSTEE FOR DEUTSCHE ALT-A SECURITIES
MORTGAGE LOAN TRUST, SERIES 2007-OA5, ET AL. VS. FERMIN ANIEL, ET AL.

HSBC BANK USA, NATIONAL ASSOCIATION AS TRUSTEE FOR DEUTSCHE WILLIAM R. JARRELL
ALT-A SECURITIES MORTGAGE LOAN TRUST, SERIES 2007-OA5
FERMIN ANIEL

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT (CODE CIV. PROC. §§ 437 & 1170.7)

TENTATIVE RULING:

Plaintiff HSBC Bank USA, N.A.'s Motion for Summary Judgment is DENIED. With the court's permission, plaintiff has brought a second motion for summary judgment.

As a preliminary matter, there are multiple procedural defects in the motion. First, the exhibits submitted in support of the motion have not been electronically bookmarked, in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).) Second, the request for judicial notice has not been made in a separate document. (See *id.*, at rule 3.113(l).) Third, the evidence in support of the motion, which exceeds twenty-five pages, is not separately bound nor does it include a table of contents. (See *id.*, at rule 3.1350(g).) Despite these defects, the motion has been considered on the merits. All parties are advised that further violations of the California Rules of Court are subject to sanction. (See *id.*, at rule 2.30.)

Plaintiff HSBC Bank USA, N.A.'s Request for Judicial Notice is GRANTED as to exhibit A, but only as to its existence as a recorded document and its legal effect, and GRANTED as to exhibits B–D, but only as to their existence as court records and not for the truth of any matter stated therein.

A. Legal Standard on Summary Judgment

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A plaintiff moving for summary judgment has an initial burden of proving each element of the cause of action entitling him or her to judgment on that cause of action. (Code of Civ. Proc., § 437c, subd. (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as at least one of the elements of the cause of action or as to each element of a defense thereto. (*Ibid.*; *Consumer Cause v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition—if the burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Analysis

The Complaint asserts a single cause of action for forcible detainer. (Feb. 18, 2025 Complaint, *passim*.) Forcible detainer may be committed by unlawfully maintaining possession of real property after entering it either by force or by stealth. (Code of Civ. Proc., § 1160, subd. (a).) The Complaint alleges the latter, and thus HSBC must prove the following elements: (1) Erlinda unlawfully entered the Property during “night-time[] or during the absence of the occupant” of the Property, and (2) she failed to surrender possession of the Property to the former occupant within five days of a demand to do so. (*Id.*, at subd. (a)(2).)

For purposes of the forcible detainer statute, an “occupant” is one who, “within five days preceding such unlawful entry, was in the peaceable and undisturbed possession” of the property. (Code Civ. Proc., § 1160, subd. (b); *Barlow v. Burns* (1870) 40 Cal. 351, 354 [“remedy (of summary forcible detainer proceeding) is only given to those who are in actual possession, and cannot be sustained by merely showing ... a right of possession”]; but see *Giddings v. 76 Land & Water Co.* (1890) 83 Cal. 96, 99 [plaintiff need not prove “actual, personal presence on the land for five days continuously preceding the unlawful entry”].) However, in lieu of establishing that the plaintiff meets the statutory definition of “occupant” at trial, the plaintiff may instead show only that he or she “was entitled to the possession at the time of the forcible detainer.” (Code Civ. Proc., § 1172; see *White v. Pfeiffer* (1913) 165 Cal. 740, 742.)

HSBC presents evidence that it obtained a judgment for possession of the Property against Erlinda on August 7, 2023. (Jun. 25, 2026 Motion for Summary Judgment (“Motion”), pp. 24–26, 31–45.) The writ was executed by the sheriff on July 24, 2024, placing HSBC in possession of the Property. (*Id.*, at pp. 28–29.) Notably, none of these facts are alleged in the Complaint. (See Complaint, *passim*.) That aside, this evidence is sufficient to establish a prima facie case that HSBC was took possession and was at least entitled to possession at that time.

However, like the prior motion for summary judgment, there is no evidence showing that Erlinda entered the Property “in the night-time[] or during the absence of the occupant” so as to constitute

a forcible detainer. (Code of Civ. Proc., § 1160, subd. (a)(2).) The relevant evidence pertaining to Erlinda's alleged entry onto the Property consists of two declarations from HSBC's agents and an August 14, 2024 letter from Erlinda.

The first declaration states that HSBC's counsel received the letter from Erlinda, that the letter admits Erlinda entered the Property sometime after July 24, 2024, and that Erlinda re-entered the Property without a right to do so. (Motion, p. 47, ¶¶ 7–8, p. 48, ¶ 9.) The second declaration states that the Property has remained occupied by unidentified persons from at least February 10, 2025, through September 9, 2025, and that “unauthorized” occupants remain in possession of the Property, also without specifying whether Erlinda is one of the occupants. (*Id.*, at p. 84, ¶ 2, p. 85, ¶¶ 3–4.) The letter itself, though listing the Property as the return address, does not actually say, admit, or otherwise show that Erlinda had reentered the Property. (*Id.*, at pp. 70–71.)

Construed strictly as required on a motion for summary judgment, this evidence fails to show that Erlinda's entry onto the Property was either during the night or during the temporary absence of HSBC or its agents. This is a necessary element of the cause of action—to conclude otherwise would render the statute's text superfluous. If merely showing an unlawful entry were sufficient, the Legislature would not have included the clause “in the night-time, or during the absence of the occupant of any lands.” (Code Civ. Proc., § 1160, subd. (a)(2).) Forcible detainer is a specific statutory remedy, intended to prevent breaches of the peace and not as a substitute for an action for ejectment. (See *Hodgkins v. Jordan* (1866) 29 Cal. 577, 578.) As such, it was originally only available when the defendant in fact used or threatened force. (*Ibid.*) The subdivision upon which HSBC relies is a limited exception to this requirement, and HSBC has not shown its case falls within this exception.

HSBC has thus failed to carry its initial burden of production of establishing each element of its cause of action for forcible detainer. Accordingly, the motion is DENIED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Defendant Erlinda Aniel shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.
